

# PROFESSIONAL SERVICES AGREEMENT

This Agreement is entered into as of Oct 8, 2023 (the "Effective Date") by and between Delta Solutions, with its principal place of business in Minneapolis, MN ("Client"), and Westgate Systems, with its principal place of business in Minneapolis, MN ("Provider"). The parties agree as follows:

## SECTION A. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in New York.

## SECTION B. SCOPE OF SERVICES

Westgate Systems shall provide the services described in Exhibit A (the "Services") to Delta Solutions in a professional and workmanlike manner, consistent with industry standards. Any changes to the scope of the Services must be agreed in writing by both parties before work begins.

## SECTION C. LIMITATION OF LIABILITY

Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Delta Solutions in the twelve months preceding the claim.

## SECTION D. INTELLECTUAL PROPERTY

All work product created by Westgate Systems specifically for Delta Solutions under this Agreement shall be the sole property of Delta Solutions upon full payment of the applicable fees. Westgate Systems retains ownership of its pre-existing materials, tools, and methodologies.

## SECTION E. CONFIDENTIALITY

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 6 months.

## SECTION F. TERM AND RENEWAL

This Agreement shall commence on the Effective Date and continue for an initial term of 6 months, unless earlier terminated as provided herein. The Agreement will renew automatically for successive terms of equal length unless either party gives written notice of non-renewal at least 30 days before the end of the then-current term.

## SECTION G. INDEPENDENT CONTRACTOR

Westgate Systems is an independent contractor and nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the parties. Westgate Systems is solely responsible for its own taxes, insurance, and employee obligations.

*IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.*

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Ingrid Kowalski, Delta Solutions

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Fatima Chen, Westgate Systems